

**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI**

Complaint No. CC006000000058064

Mr. Narendra Parmanand Lilaney

..... Complainant

Versus

M/s Nirmal Lifestyle Ltd

..... Respondent

Project Registration No. P51800007641

Coram: Hon'ble Dr. Vijay Satbir Singh, Member – 1/MahaRERA

Adv. Shreyas Rao a/w Adv. V. R. Ranadive appeared for the complainant.

Mrs. Vaishali Mohite appeared for the respondent.

ORDER

(6th August, 2019)

1. The complainant has filed this complaint seeking directions from MahaRERA to the respondent to complete the project in a time bound manner in consultation with Technical Member of MahaRERA and also to pay interest at 18% p.a. to the complainant from December, 2015 till the actual date of possession under Section-18 of the Real Estate (Regulation and Development) Act, 2016 in respect of booking of a 2BHK flat No. 504 on 5th floor of the building, admeasuring 672 sq. ft. carpet area, in the respondents project known as '**Ace and Matchpoint**' bearing MahaRERA registration No. P51800007641 at Mulund (W), Mumbai.
2. This matter was heard on several occasions when both the parties sought time to settle the matter amicably. However, in spite of several meetings, the parties could not reach to arrive at a mutually agreeable terms and conditions in the matter. During the hearings, the complainant argued that he has purchased the said flat from the respondent for a total consideration amount of Rs. 67,21,290/- in the year 2010. Accordingly, the respondent executed a registered agreement for sale with the complainant on 31st December 2013. As per the agreement, the



respondent was liable to handover possession of the said flat to the complainant on or before December 2015. However, while registering the project with MahaRERA, he has extended the date of completion of the project to December 2020. The complainant stated that in the month of September 2017, the respondent sent a mail to him informing that he will be pay an amount of Rs. 30,000/- per month from January, 2018 towards compensation for delay. The complainant further stated that though the respondent has booked 75% of the flats in the said building, he has not formed a co-operative housing society as provided under section-11 (4)(e) of RERA Act.

3. During the hearings, the respondent brought to the notice of MahaRERA that he has transferred the project to another promoter M/s. Shapoorji Pallonji and they will be taking over the entire project with the liability towards the existing allottees, who have booked their flats. But, the other terms and conditions yet to be decided and after finalisation of the same between them, the claim of the complainant towards the interest will be taken care of.
4. Considering the aforesaid facts, the MahaRERA is of the view that since the project is being transferred to another developer, the claim of the complainant cannot be decided at this stage and after completion of transfer proceedings, appropriate decision would be taken by MahaRERA on merits.
5. Hence, the present complaint stands disposed of.



(Dr. Vijay Satbir Singh)
Member – 1/MahaRERA